

SUPREME COURT OF THE STATE OF NEW YORK
KINGS COUNTY

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TRENT FRASER,

Plaintiff,

-against-

THE CITY OF NEW YORK, NYPD OFFICER
MCCARTNEY FORBES (TAX ID # 966577) and NYPD
OFFICERS JANE and JOHN DOES #'s 1-8 (Names and
Numbers are unknown at present) and Other Unidentified
Members of the New York City Police Department,

Defendants.
-----X

SUMMONS

Index #

Basis of Venue:

Place of Incident

Plaintiff Designates
Kings County as they
place of trial

To the above-named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
March 10, 2021

Respectfully submitted,

/s/ Sydney Ohagan

Sydney O'Hagan, Esq.

40 Exchange Place

Suite 1000

New York, New York 10005

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TO: CITY OF NEW YORK: CORPORATION COUNSEL, 100 Church Street, New York, NY 10007
POLICE OFFICER MCARTNEY FORBES (Tax Reg. # 966577), 79th Precinct, Brooklyn, New York

SUPREME COURT OF THE STATE OF NEW YORK
KINGS COUNTY

-----X
TRENT FRASER,

Plaintiff,

**VERIFIED
COMPLAINT**

-against-

THE CITY OF NEW YORK, NYPD OFFICER
MCCARTNEY FORBES (Tax ID # 966577) and NYPD
OFFICERS JANE and JOHN DOES #'s 1-8 (Names and
Numbers are unknown at present) and Other Unidentified
members of the New York City Police Department,

Defendants.
-----X

Plaintiff **Trent Fraser**, by his attorney, SYDNEY O'HAGAN, ESQ., as and for the Complaint
herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983, the rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution and the laws of the State of New York. Plaintiff was unlawfully arrested by the defendants. Plaintiff was deprived of his federal constitutional and state constitutional and common law rights when the individually named police officer defendants unlawfully confined plaintiff, caused the unjustifiable arrest of plaintiff.

PARTIES

2. Trent Fraser is and was at all relevant times a resident of New York.
3. POLICE OFFICER MCCARTNEY FORBES is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
4. POLICE OFFICER MCCARTNEY FORBES is being sued in his individual capacity and official capacity.
5. Police Officer John Doe Number 1 is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
6. Police Officer John Doe #1 is being sued in his individual capacity and official capacity.

7. New York Police Officers John and Jane Doe #'s 2-8 are and were at all times relevant herein an officer, employee, and agent of the New York City Police Department.
8. Police Officers John and Jane Doe #2-8 are being sued in his/her individual capacity and official capacity.
9. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents, and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.
10. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as agents in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.
11. Plaintiff in furtherance of his State causes of action filed a timely Notice of Claim upon the City of New York in compliance with Municipal Law Section 50.
12. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and the City of New York has failed to pay or adjust the claim.
13. The City of New York held a 50(h) hearing examination of the Plaintiff on May 14, 2020.

STATEMENT OF FACTS

14. On August 19, 2019 at approximately 8:00 p.m., at 1217 Bedford Avenue and Halsey Street, Brooklyn, New York, Plaintiff Fraser was visiting a friend in his apartment when, upon information and belief, police officers from the 81st and 79th precinct, including defendant NYPD officer McCartney Forbes, NYPD officers John and Jane Does #1-8, and other yet unknown police officers, at times acting in concert and at times acting independently, committed the following illegal acts against Plaintiff Fraser.
15. Defendant officers entered the premises with guns drawn on the individuals inside the basement apartment. Upon information and belief, the officers “looked nervous” making Plaintiff Fraser fearful. Once defendant officers arrived on the scene at 1217 Bedford Avenue and Halsey Street, plaintiff was not free to walk away or leave.
16. Defendants purported that Plaintiff Fraser committed trespass; however, plaintiff entered lawfully with his friend, Robert, who resided in the apartment and had a key. Plaintiff Fraser had no reason to know or believe that his friend was not authorized to host him. Prior to his arrest, Plaintiff Fraser explained to defendant officers that he was an authorized guest in the building and that his friend, Robert, had let him into the apartment with a key in his possession. He explained to officers that Robert had gone to the store and would return shortly, but officers would not wait for him to return. They simply cuffed him, along with six other individuals, and transferred them to a local precinct. Defendant officers never found any evidence indicating Plaintiff Fraser had knowingly and unlawfully entered the premises. They never attempted to verify plaintiff Fraser’s statements of his lawful entry to the apartment.
17. Defendants regarded this information and arrested plaintiff for trespass. Plaintiff denies these charges and provided testimony and objective evidence at the time of his arrest demonstrating the invalidity of the charges.
18. During the arrest of the plaintiff, defendants committed excessive force against him by maliciously, gratuitously, and unnecessary placing excessively tight handcuffs on plaintiff’s wrists. Those who did not touch plaintiff witnessed these acts, but failed to intervene and protect plaintiff from this conduct.
19. The individual defendant officers did not have an objective and/or reasonable basis to use any degree of force against plaintiffs, since plaintiff was unarmed, compliant, and did not resist arrest.
20. Plaintiff was physically injured as a result of the excessive use of force, and suffered scraping and marks to his wrist.
21. While plaintiff was incarcerated 79th precinct and Central Booking, defendants falsely and maliciously told the New York County District Attorney Attorney’s Office that plaintiff had committed the crimes of burglary, trespass, and criminal possession of stolen property, among other crimes. Defendants knew this allegation to be false based on information provided at the time of plaintiff’s arrest.

22. Based on the defendants' false statements, the King's County District Attorney's office chose to prosecute plaintiff CR-031128-19KN.
23. Plaintiff was incarcerated for approximately 19 hours. During his confinement he was subject to depraved, filthy, and inhumane conditions.
24. Plaintiff Fraser received an Adjournment in Contemplation of Dismissal.
25. Plaintiff suffered stress, anxiety, and depression as a result of the arrest and received therapy to help him cope with his mental anguish.

FIRST CAUSE OF ACTION

ASSAULT

26. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 25 with the same force and effect as if more fully set forth at length herein.
27. Defendants their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously assaulted plaintiff in that he had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the plaintiff, and that such acts caused apprehension of such contact in the plaintiff. Plaintiff suffered such assault by presently unknown officers while being transported from the precinct to Central Booking.
28. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York, the New York City Police Department, which are therefore responsible for their conduct.
29. The City, as the employer of defendants is responsible for their wrongdoing under the doctrine of respondeat superior.

SECOND CAUSE OF ACTION

BATTERY

30. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 29 with the same force and effect as if more fully set forth at length herein.
31. Defendants their agents, servants and employees, acting within the scope of his employment, intentionally, willfully and maliciously battered plaintiff, when they, in a hostile and/or offensive manner with the intention of causing harmful and/or offensive bodily contact to the plaintiff and caused such battery. Plaintiff was assaulted by police officers.

32. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
33. The City, as the employer of Defendants is responsible for their wrongdoing under the doctrine of respondeat superior.

THIRD CAUSE OF ACTION

FALSE ARREST AND FALSE IMPRISONMENT

34. Plaintiff repeats and alleges paragraphs 1 through 33 as if fully set forth herein.
35. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.
36. The individually named defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
37. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

FOURTH CAUSE OF ACTION

NEGLIGENT HIRING, RETENTION, TRAINING AND SUPERVISION

38. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 37 with the same force and effect as if more fully set forth at length herein.
39. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise the individually named defendants, individuals who were unfit for the performance of NYPD duties.

FIFTH CAUSE OF ACTION**FAILURE TO INTERVENE**

40. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 39 with the same force and effect as if more fully set forth at length herein.
41. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other members of the NYPD.
42. Defendants failed to intervene to prevent the unlawful conduct described herein despite having had a reasonable opportunity to do so, and full knowledge of the unlawful conduct.
43. As a result of the foregoing, plaintiff was subjected to an illegal search and undue force upon his person over the course of the false arrest.
44. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York, the New York City Police Department, which are therefore responsible for their conduct.
45. The City, as the employer of defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SIXTH CAUSE OF ACTION**NEGLIGENCE**

46. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 45 with the same force and effect as if more fully set forth at length herein.
47. Defendants owed a duty of care to plaintiff.
48. Defendants breached that duty of care by subjecting his to an illegal search and undue force and unprivileged deprivation of his liberty without sufficient or any cause to do so.
49. As a direct and proximate cause of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.
50. All of the foregoing occurred without any fault by plaintiff.
51. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SEVENTH CAUSE OF ACTION

NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS

52. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 51 with the same force and effect as if more fully set forth at length herein.
53. By the actions described herein, the individually named police officer defendants, each acting individually and in concert with one another, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.
54. As a result of the foregoing, plaintiff was deprived of liberty and sustained great emotional injuries.
55. The City, as the employer of the defendants, is responsible for their wrongdoing under the doctrine of respondeat behavior.

EIGHTH AND NINTH CAUSES OF ACTION

42 U.S.C. § 1983 and 42 U.S.C. 1988

Violation of First, Fourth, Eighth and Fourteenth Amendments of US Constitution pursuant to Court's concurrent jurisdiction over Plaintiff's federal first-amendment-retaliation claim (8th claim) and false-arrest/unlawful-search claims/excessive force (9th claim).

56. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 55 with the same force and effect as if more fully set forth at length herein.
57. Defendants, while acting under color of state law, engaged in conduct that violated Plaintiff's federal constitutional rights as protected by 42 USC Section 1983.
58. New York State courts have concurrent jurisdiction to hear federal claims such as Plaintiff's Section 1983 ones here.
59. Plaintiff's federal constitutional claims—brought pursuant to 42 USC 1983 and 1988—allege the violation of his First, Fourth and Fourteenth Amendment rights.
60. In particular, Plaintiff alleges that Defendants' retaliatory and harassing false arrest, unlawful search, and fabrication of evidence violated his First, Fourth and Fourteenth Amendment rights insofar as Defendants had no cause or legal privilege to submit Plaintiff to deprivation of his liberty, seizure and search of his person, and other constitutional injuries, yet they did so with malice and retaliatory intent.
61. Insofar as Plaintiff's federal claims, brought pursuant to the court's concurrent jurisdiction over them, mirror state constitutional tort and tort elements, Plaintiff repeats and reiterates the above allegations in support of the federal claims here.

62. In the event Plaintiff prevails at trial on one, some or all of his 42 USC Section 1983 claims pursuant to the court's concurrent jurisdiction, he also seeks reasonable fees and costs as prevailing party pursuant to 42 USC Section 1988.

TENTH CAUSE OF ACTION

Municipal liability pursuant to 42 USC Section 1983

63. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 62 with the same force and effect as if more fully set forth at length herein.
64. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of defendant City of New York, which is forbidden by the Constitution of the United States.
65. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York Police Department included, but were not limited to policies, customs and practices wherein New York City Police officers arrest individuals without probable cause and create false versions of events to justify their actions to achieve remunerative ends through overtime, to achieve professional advancement through arrest numbers, and to satisfy personal whims through retaliatory use of their authority.
66. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York Police Department were the moving force behind the violation of plaintiff's constitutional rights as described herein. As a result of the failure of defendant City of New York and the New York City Police Department to properly recruit, screen, train, discipline, and supervise its officers, including the individual defendants, defendant City of New York has tacitly authorized, ratified, and has been deliberately indifferent to, the acts and conduct complained of herein.
67. Similarly, the City of NY is on notice of the obvious risk that their failure to train, discipline and supervise its officers—and in particular these specific Defendants who discovery will show to have been the subject of misconduct allegations that went uncorrected—proximately caused the constitutional violations suffered by Plaintiff here.
68. The foregoing customs, policies, usages, practices, and procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiff as alleged herein.
69. As a result of the foregoing customs, policies, usages, practices, and procedures and rules of defendant City of New York and the New York City Police Department, plaintiff was unlawfully arrested, subjected to undue force and unlawful search, and prosecuted.

70. Defendants collectively and individually, while acting under color of state law were directly and actively involved in violating plaintiff's constitutional rights.

WHEREFORE, TRENT FRASER, plaintiff, demands a judgment against the defendants on each cause of action in amounts to be determined upon the trial of this actions which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorney's fees inclusive of costs and disbursements of this action, interest and such other relief as appropriate under the law.

Dated: New York, New York
March 10, 2021

Respectfully submitted:

By: *Sydney Ohagan*
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New York, New York 10005
(774) 218-3461
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TO:

CITY OF NEW YORK: CORPORATION COUNSEL 100 Church Street, New York, NY 10007

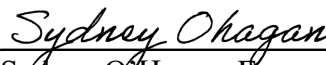
POLICE OFFICER MCARTNEY FORBES (Tax Reg. # 966577), 79th Precinct, Brooklyn, New York

ATTORNEY'S VERIFICATION

I, **SYDNEY O'Hagan**, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am attorney at the law firm of **SYDNEY O'HAGAN, ESQ.**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters wherein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff's is that Plaintiff is out of the county.

DATED: New York, New York
March 10, 2021



Sydney O'Hagan, Esq.